From: Julie Allen
To: Tomerlin, Ashley@BCDC
Subject: Berkeley ferry/pier project, comments for 5/12 DRC meeting
Date: Tuesday, April 22, 2025 11:43:00 AM

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Dear Ashley,

Katherine Pan recommended that I send you comments in advance of the upcoming BCDC DRC meeting on May 12 to look at the Berkeley ferry/pier project. If I should send the below to anyone else instead/in addition, please let me know and I'll do so.

I'm a 20 year resident of Berkeley and have been a regular Berkeley marina swimmer for over 5 years now. I'm a member of a 500-member group of open water swimmers (EBOWS.org) and we swim all over: Berkeley, Richmond, Albany, Alameda, SF. I've been trying to stay up on the plans to redesign the Berkeley marina to bring ferry service there. It's been tricky to do that, because the city has been very quiet with their plans. I attended the March meeting of the parks, rec, and waterfront commission when the pier project was presented to the public. The meeting, on a school night, began at 7 and the ferry project presentation did not begin until 9:45pm. This is hardly transparency!

Swimmers need a few things: a place to launch, a place to swim, and a place to park. The city has not solicited swimmer feedback (and I have tried! I've sent two emails now to Liza McNulty at the city no replies) and the report did not mention swimmer usage at all.

Swimmers regularly launch near the sea wall by the defunct Hs Lordships restaurant. This is necessary in lower water as the sailing basin is too shallow to swim + launch when the water is under 3 feet, which is probably 50% of the time! We park, along with fishermen, walkers, paddlers and wind-boarders, along the sea wall. Those parking places will be taken by ferry users. Many of us at the March meeting were dismayed at the city's assertion that their parking study showed plenty of parking for all. This is based on cherry-picked data and the false assertion that all parking spaces are equally appropriate for all users:

P 22 of the report contains parking info that makes clear that parking utilization data was gathered at 10am and 8pm (parking surveys done to detect overnight camping) and that peak usage times (2pm-4pm) were excluded.

The city asserts that all parking spaces in the marina are equivalent -- but this is not so. A shivering wet swimmer should not be expected to shuffle 1/2 mile back to her car parked at the other end of the park.

I am worried that the city's plans to commercialize the marina decrease recreational amenities that are rare, free, and enjoyed by the most diverse group of people I have EVER seen at any Berkeley park. I am concerned that the city's plans are supported by a report with false data and that recreational users and Berkeley residents have not had input into the plans and have

been kept in the dark. I very much hope the BCDC will insist on the city doing more accurate studies and commit to preserving the recreational amenities that we pay for and that we have the right to enjoy (water access is for all).

Thank you for your time in reading this. I would be happy to provide any additional info. I intend to attend the May 12 meeting.

Best wishes,
Julie

Jim McGrath
2301 Russell Street
Berkeley, CA 94705
March 18, 2025

Scott Ferris
City of Berkeley
2180 Milvia
Berkeley, CA 94704

Subject: Parking at Berkeley marina, Kittelson Report dated March 7. 2025

Dear Mr. Ferris:

INTRODUCTION AND SUMMARY

In January of 1967, Berkeley received a permit to fill an area of the bay and expand Berkeley marina to "...permanently establish public access and recreational use for a sizable part of the Berkeley shoreline. " (From the minutes for BCDC approval on January 20, 1967, Permit No. 28-66) The Bay Conservation and Development Commission, guardians of the Bay from relentless fill proposals, relied on the assurances of the city that the parking lot: "would be used primarily for patrons of the restaurant, park and beach"

But Berkeley has failed to maintain the facilities that justified the bay fill and now proposes a massive ferry terminal that could sacrifice the promised recreational benefits to a facility that will cost the city at least $29 million and will generate no revenue. That terminal, if approved, will generate no revenue to help maintain the marina, and the $94 million in deferred maintenance will remain deferred. Berkeley has not been forthcoming about the other costs that such a terminal might entail.

The Kittelson report is part of an effort to whitewash the potential impacts of a massive ferry terminal on the promised recreational use. It is inadequate, using misleading statistical methods to minimize what little data it has. It substitutes irrelevant data while excluding relevant data, and falsely claims that it is a comprehensive analysis of parking.

In an effort to retain some aspects of their professional reputation, Kittelson tips us off to the problem:

> The data may not reflect peak utilization which could occur at times other than 10 am and 8 pm. In Spring, 2024, staff began collecting data at additional time points (2 pm and 4 pm), which was not used for this study due to the comparatively limited number of data points.

Of course 10 am and 8 pm are not characteristic of peak recreational times. But the city has used this irrelevant data, while not including staff counts that showed the recreational parking lots 96% full on some weekdays and spent only a paltry $22,000 on actually counting parking. The document is fatally flawed, and the city needs to start over again and develop a factual baseline of recreational use and parking behavior—as stakeholders have said for years. I'll provide the details and supporting citations below.

BAY PLAN TESTS

Berkeley was granted State Tidelands and given permits, loans and grants to create a regional recreational facility. Those grants and permits establish policies, such as those found in the BCDC Bay Plan, and in the Water Trail legislation, that gave Berkeley funding, and permits to fill the Bay, in.exchange for assurances that Berkeley would provide a regional facility, not one merely for Berkeley residents. That policy guidance has generally been ignored by Berkeley as it tried to push through a commuter terminal that poses an existential threat to the regional recreational facility that currently exists.

Berkeley Marina is designated as a waterfront park priority use area in BCDC's Bay Plan. Further guidance for protection of recreational use is established in Recreational Policy 9:

> Ferry terminals may be allowed in waterfront park priority use areas and marinas and near fishing piers and launching lanes, provided the development and operations of the ferry facilities do not interfere with current or future park and recreational uses, and navigational safety can be assured. Terminal configuration and operation should not disrupt continuous shoreline access. Facilities provided for park and marina patrons, such as parking, should not be usurped by ferry patrons. Shared parking arrangements should be provided to minimize the amount of shoreline area needed for parking.

Plan Map 4 in the Bay Plan provides further and specific guidance to "Preserve marina, beach, small boat launch, windsurfing access, fishing pier…

These policies—ignored in nearly every City of Berkeley document—establish a two-part test before a ferry terminal can be considered and additional policies that protect the existing recreational community. First, if land might be needed for future park and recreational use, it cannot be used for a ferry terminal. Current zoning efforts of the city might lead to a doubling of Berkeley's population, and cooler areas like the Bay's waterfront parks are critical for heat relief as the climate warms. Second, parking for recreational users cannot be usurped by ferry patrons. Finally, measures must also be taken to

preserve existing access points, and to mitigate any adverse impacts on existing access opportunities.

THE CITY'S PARKING STUDIES ARE INADEQUATE AND DO NOT ADDRESS BAY PLAN POLICIES TO PREVENT USURPATION OF EXISTING USERS

The city has not established a baseline of existing recreational use, or parking needs. Instead, the city has used irrelevant information which it then claims shows that there is plenty of parking available for recreational users. To demonstrate that parkers for a proposed ferry would not usurp the needs of recreational users protected by the Bay Plan, the city must understand what those needs are. The Kittelson report claims that the document provides ..."a comprehensive review of current parking conditions." On March 12, 2025, City staff went even further, claiming that they were using 18,000 data points to establish what current patterns are. Those claims are not true. In fact, the city has only developed parking counts on two weekdays during the recreational season.

The city had staff collect the number of parked cars, focusing on the presence of RV's, after an RV camp was cleared from the Seawall parking lot. Those counts were taken at 8:00 PM and 10:00 AM, times when few recreational users are in the marina. The forms that were used and the timing of the counts make it clear that the purpose of the counts was to determine whether cars, and particularly RV's, were parked in the marina overnight. The counts had nothing to do with establishing a baseline of recreational use and parking needs. Presentation of that data as a comprehensive review of current parking conditions at best reflects a misunderstanding of the proper use of data. When developing or interpreting a time series, it is standard engineering practice to keep data generated by different populations of behavior separate. Here the data collected by city staff inventories fourteen different parking lots in the marina, at a time when recreational activity is near a minimum. Those counts might reveal something about parking by ferry passengers and fishing boat passengers at South Cove West, or dog walkers and joggers at Cesar Chavez. But they do not provide any information about recreational use at the South Basin, which usually begins after noon on weekdays and continues until about 6:00 PM. Combining data from different populations also destroys whatever statistical value that data may have had. In the current case, including this data in the Kittelson report and representing this as a comprehensive review of current parking conditions misrepresents the number of recreational users during peak recreational season and times.

The city is aware of the potential for ferry riders to usurp recreational parking. Earlier studies by Nelson\Nygard recognized the problem of ferry passengers parking in the south basin. Their memorandum dated September 11, 2018, stated:

> Since August 29th, ferry passengers have been directed to park in the Marina Boulevard Lot with signage and communication by PropSF and Tideline to their customers. However, very few users, if any, have heeded this request. Ferry customers continue to park in South Coast East, J&K and L&M Lots due to a lack of enforcement. Since reopening, South Coast East Lot experiences as much as 90% occupancy.

The problem of ferry parkers usurping recreational users was well known to both BCDC enforcement staff and Parks and Recreation management; in a letter dated April 15, 2019, Scott Ferris acknowledged to BCDC that the approval of two small ferry leases—without consideration of the Bay Plan policies or public process—"has had the effect of squeezing out visitors…"

Notwithstanding this history, city staff told the planning Commission on May 10, 2023, that weekday parking utilization on that same lot was 5%. (slide 24, Power Point Presentation titled Waterfront Specific Plan for the City of Berkeley Public Tidelands Area.) In fact, data collected by city staff but not used in the Kittelson report shows parking utilization in those two South Basin lots as high as 96% on summer weekdays.

Stakeholders in the marina sent city staff more than a dozen time-dated photographs showing heavy use of the South Basin East and West and J & K lots, the closest overflow lot to the South Basin East and West lots. Those photographs, submitted by Gordon Stout, included aerial photos that showed that riders on the Genentech ferry continue to park in the recreational areas, usurping space for visitors. The city has made no attempt to quantify that use, although it has plenty of data since the lease for the ferry operation requires payment for each passenger boarding.

Stakeholders also commented, in writing, that the work program for Kittelson studies was not collecting sufficient parking information at the times when recreation use was greatest. The city went ahead with their plan to only measure use on five days—at a minimal cost of $22,000. Only two of those days were during the weekdays when ferry parkers were most likely to usurp parking needed for recreation. The data from those studies has not been released.

I noticed in the draft Kittelson report that city staff had completed additional traffic counts but they had not been used in the study. I submitted a Public Record Act (PRA) request, and received that data in a spread sheet titled "Waterfront Parking Data—collected by City

staff" Most of the data was collected at 8:00 PM and 10:00 AM—times when recreational use is minimal. But the city collected parking counts on 11 days between July 23, 2024, and August 23, 2024. This only represents one month and is not the busiest at the marina—according to the presentation to the Parks Commission on March 12, 2025, June is the busiest month. Data was only collected at 4:00 PM, which does not span the whole peak recreational period of 2:00 PM until 6:00 PM. However, for the two recreational lots closest to the proposed ferry terminal, use on weekdays was often more than 70% full, and as high as 96% (August 1), 92% (July 23), and 91% (July 31). The city has excluded these counts that indicate the parking lots that might be affected by development of a ferry terminal are already full and vulnerable to usurpation, arguing that the data involved—eleven data points—is "comparatively limited." The city prefers its two days of information and counts that were not taken during recreational periods. This is not an acceptable use of limited data and avoids the obvious solution—collect sufficient data to characterize existing recreational uses. Spend more than $22,000 on the fundamental issue raised by the proposed ferry terminal.

THE KITTELSON APPROACH OF COMBINING DIFFERENT POPULATIONS OF PARKING INFORMATION AND AVERAGING THE RESULT IS AN IMPROPER USE OF DATA

Earlier I established that proper use of time series data requires that different populations of data be kept separate. There are twelve different parking lots in the marina, and probably as many different recreational activities. Correct use of data, if sufficient relevant data were to be collected, would identify which parking lots are underutilized and when. That would be a valuable tool in determining whether ferry passengers could be accommodated without usurping existing recreational activities. The approach used in the Kittelson study improperly combines both different locations and different times. This destroys the statistical value that the data has and improperly implies that use is less than it actually is. In effect, times of little use are used to improperly dilute the significance of high use times, and the manipulated data is then presented as a comprehensive analysis.

FUTURE RECREATIONAL NEEDS HAVE NOT BEEN CONSIDERED

The cited BCDC policy reserves some waterfront land, including Berkeley Marina, as park priority areas, recognizing that the land might be needed for future recreation as population increases. The city has failed to account for growing recreational activities, like winging, a newer form of windsurfing, kayaking and swimming. As the climate warms, and as Berkeley provides zoning for a large increase in population in their land use plans and zoning, cooler refuges like Berkeley marina become more important. The city has made no

effort to characterize future recreational needs for the region, while it has accepted public funds for a regional recreational facility.

The lack of specific consideration for fishing, given the Bay Plan policies, is of particular concern. At one time, as many as 100,000 anglers fished from the Berkeley pier each year—an average of about 300 a day. Even if only half of them drive, that is a demand for 150 parking spaces—and they formerly parked on Seawall lot, now proposed to be parking for a new ferry terminal. We have seen how improved facilities attract new users at the South Basin East parking lot and at Albany Beach. But no effort has been made to provide either a baseline for such returning and new users, or any accounting for their infrastructure needs. The same concern exists for the reopening of the former H's Lordships restaurant, closed now for many years. A new lease of that building, or any new visitor-serving facility on the filled land, would generate parking use—which has not been considered.

THE PROPOSED FERRY TERMINAL WOULD HAVE CAPACITY FOR UP TO 3200 DEPARTING PASSENGERS

The project described in background documents would involve ferries with a capacity to carry 400 passengers departing from Berkeley, with eight departures a day. The Kittelson study uses a much lower estimate of passengers to evaluate potential impacts, selecting 2,110 ridership and the year 2040 for analysis. This is different from the plans presented in WETA's update of their long-term plan for 2050, dated April 12, 2023. On Page 24, in Table 11, it provides 4 different ridership forecasts for the proposed Berkeley service. The "Steady as it goes" scenario forecasts a ridership of 2,500. The "Throttle Back" scenario forecasts a ridership of 1,800. The "Chart New Course" scenario forecasts a ridership of 4,000. The "Tack to the Wind" scenario forecasts a ridership of 2,600. Instead of these scenarios in the 2023 document, the Kittelson report (page 16) uses an earlier, 2022 WETA business plan and only goes to 2040. They thus have a ridership total of 2,110, well below three of the WETA scenarios, or the actual capacity of the proposed facility. The use of an earlier report and an earlier year suggests a lower ridership—and thus misrepresents the level of passengers WETA is planning for. The more serious issue is that WETA plans for 400 passenger ferries and 8 departures from Berkeley. That is a capacity of 3200 departing passengers in the infrastructure that is being proposed. The city plan, and the Kittelson's parking studies, need to evaluate all the possible scenarios, including the capacity for up to 3200 departing passengers, to create a meaningful basis for evaluating consistency with the Bay Plan policies.

THE REPORT USES OPTIMISTIC ASSUMPTIONS ABOUT MODE SPLIT RATHER THAN DATA FROM BERKELEY'S SMALL FERRIES AND OTHER WETA TERMINALS

The city uses assumptions about mode split rather than readily available data of actual mode split. That approach, especially in combination with the practices of averaging parking, could significantly underestimate the demand for parking by ferry passengers. The Kittelson report significantly lowers the assumptions for those driving from the estimates and assumptions of Nelson\Nygard in their September 11, 2018, report. Berkeley has experience with three different small ferry operations in the marina since 2018 that could provide real data about mode split, instead of using assumptions. WETA also operates other terminals and has circulated surveys to estimate mode split. Richmond's facility is analogous to the proposed Berkeley facility because it is also located in the waterfront away from residential areas. There, 57% of passengers drive alone, and another 17% may carpool take transit, or be dropped off. That matches the mode split proposed by Nelson\Nygaard much more closely than the new, much lower assumptions used in the Kittelson report. Where there is a regulatory standard, as there is in the Bay Plan, assumptions that are not supported by substantial evidence in existing terminals, should not be used if they increase the risk that ferry parkers will usurp recreational parking. If the 60% drive alone or carpool and park figure recommended by Nelson\Nygaard is used, at least 630 drivers will be looking for a parking place in Berkeley marina—and potentially far more. The nearest parking lots are the high recreational use lots in the South Basin, which total only about 200 spaces. Usurpation of those lots could easily occur and would compromise or end much of the existing recreational use. City efforts to date have not considered the BCDC Bay Plan policy, or successfully controlled parking in the recreational areas; passengers on the Genentech ferry park in the South Basin West lot and the city has made no effort to quantify or control that use of scarce recreational parking.

BERKELEY NEEDS TO VERIFY BICYCLE USE RATHER THAN MAKE ASSUMPTIONS

While the Nelson\Nygaard estimate of 60% driving alone or carpooling has substantial evidence supporting it, the assumption that 18% of passengers will ride bicycles does not. The bike share at Richmond is 11%. It is a bit higher at Harbor Bay, (14%) but there is a substantial residential population close to that terminal. While bicycle advocates favor improving bicycle ways, it is not clear that 18% is a reasonable assumption. The most recent estimate of bicycle commuting in Berkeley was done in 2022 by the American Community Service and reports that only 3.4% of Berkeley commuting is done by bicycle. https://data.bikeleague.org/new-data-and-competing-narratives-a-look-at-census-and-streetlight-data/ Currently, over 91% of visitors to the marina report that they drive.

I'm often on my bike in the marina and observe the existing patterns. I have seen up to 6 bicycles in the bike lockers next to the bait shop, and a single bicyclist arrive and take the Genentech ferry. It is obvious that 18% of the visitors to the marina, or those using the Genentech ferry, do not ride a bike. The city has placed a ten-space bike locker outside of the bait shop. It requires a cell phone and app to use, and like most such endeavors, that generates total use and locational information. While that information exists, and doesn't need to be generated, the city has not used that data, or other methods, to determine whether such investments are changing mode split. Scott Ferris has told the Berkeley Democratic Club that he hopes that more people will ride a bike. Hope is not part of a program, or substantial evidence that existing efforts are making a difference.

THE KITTELSON REPORT DOES NOT ADDRESS THE BAY PLAN POLICIES TO PRESERVE EXISTING RECREATIONAL ACCESS

Earlier I established the third test in Bay Plan policies, protecting existing recreational amenities like the pier, the beach, and windsurfing. With the current closure of the East Dock of the South Basin, and the damage to the ADA accessible float at the middle dock, the lack of city maintenance of existing recreational facilities—the justification for the fill they now target for a park and ride commuter facility--has come into sharp focus for stakeholders. Other vital recreational facilities—the path on the east side of Seawall Drive lot, the Berkeley fishing pier, the sheet pile seawall in the marina that holds up the fill, maintenance of docks in the marina which pays 67% of the marina revenue, and dredging of the South Basin—have been ignored, allowing the promised recreational amenities to degrade. Despite that, the marina remains a vital—and diverse—community of stakeholders which have not been characterized by the city's planning efforts.

I draw attention to the cove next to the H's Lordships Restaurant, which has been used by windsurfers for access to the Bay for over thirty years and now provides access for swimming. That cove was identified as a critical access point in the 2004 Marina Plan, and the city received a Coastal Conservancy grant and completed a design for improving that access. Yet nothing was built, and the city has closed off the parking lot that provided access for users. The most recent city plan, presented at the March 12, 2025, Parks, Recreation and Waterfront Commission proposes to use virtually all of the bay fill for ferry parking, compromising landscaping, the existing uses and the pathways along the area.

FEASIBILITY

A number of questions by Commissioners at the recent Parks Commission meeting went unanswered, or only partially answered. City staff and documents have insisted that Berkeley will not pay for the subsidies required to operate the ferry system and have not provided a complete inventory of the costs that the city has agreed to pay in the existing MOU. When the initial Feasibility Plan was issued and Berkeley entered into an MOU with WETA, Berkeley agreed to pay the entire cost of the recreational portion of the pier and all shoreside improvements for recreation. At that time (2019), the estimated cost of those facilities was $29 million. The latest drawings appear to involve much more substantial and expensive improvements.

On the issue of subsidizing operations, I draw your attention to this provision in the 2022 Berkeley Ferry Service Business Plan, prepared by Economic and Planning Systems, Inc.

> At the local level, and in partnership with local employers and developers, the City of Berkeley can incorporate funding for ferry operations or shuttle services in future Transportation Demand Management plans. Private funding from local developments through Transportation Demand Management agreements and plans can be negotiated and may generate operating subsidies.

Fairly clearly, WETA is not making plans, and does not have funding, for the necessary operational subsidy and expects Berkeley employers, developers, or taxpayers to contribute.

Even a minimal Transportation Demand Management plan is expected to cost at least $550,000 a year according to estimates prepared by Nelson\Nygaard in their January 2022 “Parking and Mobility Framework.”

There are other sources which indicate Berkeley is expected to generate operational and subsidy costs. These quotes are from the Berkeley Ferry Service Business Plan 03/17/2022.

> Page 39:
> Terminal Expenses
> Terminal expenses refer to the costs that each service route pays towards maintenance and usage of the terminals at Berkeley, San Francisco, and

> Larkspur. These expenses are estimated to be $135,000 annually. The capital costs of constructing the Berkeley terminal are not incorporated in these estimates but discussed in Chapter 8.
>
> Page 47:
> Local Funding
> It is not expected that the City of Berkeley will subsidize operations of the ferry services from its General Fund. However, local (City) funding sources may also be established, similar to the funding provided by a local property tax charged in Bay Farm Island or a portion of Contra Costa County sales tax revenue for the Richmond service to provide an operating subsidy. One option could include a Transient Occupancy Tax surcharge on hotel night stays in the Marina that would reinvest revenue in the Berkeley waterfront and support maintenance of the pier and shared parking facilities.

The city has not been forthcoming about the exposure of Berkeley to ongoing costs for the operation of a terminal and parking area, or the impact that may have in leaving the current maintenance needs for recreational uses—the purpose of the marina—unmet.

BERKELEY NEEDS TO TEND TO ITS EXISTING RECREATIONAL FACILITIES FIRST

As I noted in the introduction, Berkeley has failed to fulfill the promises it made to the public and BCDC, not merely on this filled site, but throughout the waterfront. Berkeley created a structural deficit in the marina fund by refusing to use the city-wide parks tax funds for maintenance of the parks in the marina. As noted by the Division of Boating and Waterways, the city has used as much as $1.5 million a year in boating revenue to maintain those parks, rather than maintaining those boating facilities. Slip holders pay 2/3 of the cost of maintaining the marina, have other marina options, and expect a functional marina. The recent closure of the East Dock in the South Basin and the float which meets Americans with Disabilities Act standards also in the South Basin, has brought these practices into sharp focus. A list of facilities which have not been adequately maintained includes:

- Water intrusion into the old landfill which is now Cesar Chavez Park has resulted in oversight and requirements for correction from the Regional Water Quality Control Board and the Air Pollution Control Board;

- Pathways at Cesar Chavez Park are in poor condition and do not meet the standards of the Americans with Disabilities Act
- The marina entrance channel was not dredged for over twenty years, and the sight of boats stuck in the mud was a frequent occurrence
- The docks and electrical systems at the marina were not maintained, leading to departure of many tenants
- The south basin, home to the Cal Sailing Club and Cal Adventures, has filled with sediment and often can't be used to give lessons
- The seawall that holds the fill approved in 1967 is in danger of failing
- Berkeley pier is closed
- Two of the three docks in the South Basin used for recreation are closed or limited for people with disabilities
- Streets and paving in many of the parking lots in the marina are failing
- H's Lordships restaurant has been closed for many years and needs at least $6 million in repairs. As a result, the marina fund will not derive any net revenue for at least a decade after it is re-occupied.

While Berkeley adopted an asset management policy in 2022, it has done nothing to implement that policy in the marina, or in the current Waterfront Specific Plan. The total repairs that are needed is at least $94 million, yet the city is focusing on a ferry project that will not generate any revenue.

The city needs to focus on the basics of getting the waterfront preserved and maintained. Not on poorly conceived and executed parking studies.

Very truly yours,

Jim McGrath

Copies: BCDC, City Council